HRMA Board Quick Reference

A plain-English guide to what the Hunter's Ridge Maintenance Association governing documents say, and where each rule is written.

Please read first. This is a plain-language summary for the board's convenience. It is **not legal advice**. The recorded documents control: if this guide and a document disagree, the document wins. Later state law may change how some provisions apply. **Confirm with the association's attorney before any enforcement action or major decision.**

Prepared October 2026 from the verbatim transcriptions in the MD/ folder.

How to use it: find your topic, read the plain-English rule, then check the citation in the original before you act. Labels used in the tables:

- **Dev-era**: written for the developer period; it may no longer apply.
- **Unclear**: the wording can be read more than one way (see Watch-outs).
- **Conflict**: another document says something different (see Watch-outs).

Contents: Documents at a glance · Key numbers · Membership & voting · Board · Officers & committees · Meetings & elections · Assessments · Architectural review · Use restrictions · Common property & easements · Enforcement · Changing the documents · Playbooks · Watch-outs · Where to find it

The documents at a glance

Document (short name)	What it does	Date	Recorded / filed
Cert. of Inc. (Certificate of Incorporation)	Creates HRMA as a Delaware nonprofit corporation. Sets its purposes, membership and voting classes, board basics and director liability.	Signed June 14, 1989	Filed with the Delaware Secretary of State June 15, 1989, stamp no. 8901660031 (Cert. of Inc. · p. 1)
1988 Declaration	Covenants made to comply with New Castle County subdivision regulations: 72-home cap, single-family only, protects the open space, requires a maintenance association, sets assessment and lien basics, and lets the County step in. Written for the benefit of New Castle County.	Dec. 13, 1988	Deed Record Bk 815, Pg 305–318; received for record Jan. 11, 1989 (1988 Declaration · p. 14 (Bk 815/318))

Document (short name)	What it does	Date	Recorded / filed
Decl. of Restrictions	The everyday rulebook: use restrictions (Art. I), architectural review (Art. II), membership and voting (Art. IV), assessments and liens (Art. V), amendments (Art. VI), enforcement (Art. VIII).	Jan. 19, 1989	Deed Record Bk 819, Pg 330–349; received for record Jan. 19, 1989 (Decl. of Restrictions · p. 20 (Bk 819/349))
By-Laws (with the 1990 Written Consent of Directors)	How HRMA runs: meetings, board, elections, officers, committees, records, amendments.	Apr. 9, 1990	No recording reference appears on the document (By-Laws · pp. 10–11)
Easement (Maintenance Easement Agreement, HRMA and Paul Schlosser)	Gives HRMA a permanent, nonexclusive easement for the entrance sign and landscaping on the Schlosser lot, Tax Parcel 08-036.10-257, plus maintenance access over a roadside strip. HRMA pays all costs and owns the sign.	Feb. 18, 2000 (HRMA's signature acknowledged Mar. 13, 2000)	Recording stamp "00 JUN-6" (Easement · p. 1). Page stamps read "309" (p. 2, book digits uncertain) and "BK2840 ... 311" (p. 4, "PG0" inferred); p. 5's stamp is fragmentary and pp. 1 and 3 show no book/page. Probably Deed Bk 2840 around Pg 309–311; confirm with the Recorder of Deeds

The **recorded subdivision Plan** (Record Major Land Subdivision Plan of Hunter's Ridge, recorded Jan. 12, 1989, Microfilm Record No. 9600) is part of the "Documents" (By-Laws Art. I · p. 1). It is **not** in this folder.

When documents conflict (order of precedence, as the documents state it)

1. **Cert. of Inc. beats the By-Laws.** (By-Laws Art. XII §2 · p. 10)
2. **The "Documents" beat the By-Laws.** "Documents" means the recorded Plan, both Declarations, their amendments and any later declarations by the developer. (By-Laws Art. XII §2 · p. 10; definition at By-Laws Art. I · p. 1)
3. **By-Laws can't change anything the Cert. or the Documents cover**, except as those documents allow. (By-Laws Art. XII §1 · pp. 9–10)
4. **Board Rules and Regulations can't conflict with the Declaration** (Decl. of Restrictions Art. IV §3 · p. 8 (Bk 819/337)), and no rule takes effect until the Board adopts it (By-Laws Art. IX §3 · p. 8).

5. **Not stated anywhere:** which wins between the Cert. of Inc. and the Declarations, or between the two Declarations. The Easement has no precedence clause either. If two of these collide, ask counsel.

Short version: **the Cert. of Inc. and the Documents outrank the By-Laws, and the Board's Rules must fit within the Declaration.**

Key numbers

Item	Number	Where written
Maximum homes	72, single-family detached only	1988 Declaration ¶1–¶2 · p. 2 (Bk 815/306)
Votes per lot	1 (one member per lot)	Decl. of Restrictions Art. IV §1–§2 · p. 7 (Bk 819/336)
Annual assessment due	March 1	Decl. of Restrictions Art. V §4 · p. 9 (Bk 819/338)
Assessment year	March 1 to February 28	Decl. of Restrictions Art. V §4 · p. 9 (Bk 819/338)
Board sets the annual amount	Before March 1 each year	By-Laws Art. V §2(c)(i) · p. 4
Change the annual assessment	2/3 of Class A members present at a meeting called for that purpose	Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337)
Early-payment discount	20% of the gross assessment if the treasurer receives it "prior to the thirty-first day of March"	Decl. of Restrictions Art. V §5 · p. 9 (Bk 819/338)
Delinquent	Not paid before April 1	Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338)
Interest on late assessments	Delaware "legal rate," from the due date (no percentage stated)	Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338)
Interest trigger (1988 version)	If unpaid 30 days after the due date, interest at the Delaware legal rate from the date of delinquency	1988 Declaration ¶6(d) · pp. 3–4 (Bk 815/307–308)
Assessment-status certificate	$10.00 fee; must be mailed within 5 business days	Decl. of Restrictions Art. V §7 · pp. 10–11 (Bk 819/339–340)
Annual members' meeting	First Tuesday in March, 8:00 p.m.	By-Laws Art. IV §1 · p. 2
Members' meeting notice	Mailed 10 to 50 days ahead, stating the purposes	By-Laws Art. IV §3 · pp. 2–3
Members' meeting quorum	60% of the total membership vote, in person or by proxy	By-Laws Art. IV §4 · p. 3
Members' petition for a special meeting	Members holding one-fourth of all votes	By-Laws Art. IV §2 · p. 2

Item	Number	Where written
Proxy expires	Void if given more than 11 months before the meeting	By-Laws Art. IV §4 · p. 3
Election ballots	Mailed at least 14 days before the return date; return date no later than the day before the meeting	By-Laws Art. VII §4 · pp. 5–6
Board size	3 or more directors (term length not stated)	By-Laws Art. V §1 · p. 3
Board quorum	A majority of the Board	By-Laws Art. VI §5 · p. 5
Regular Board meetings	First Tuesday of June, September and December, 8:00 p.m.	By-Laws Art. VI §2 · p. 4
Special Board meeting notice	Mailed at least 3 days ahead, or in person or by phone no later than the day before	By-Laws Art. VI §3 · p. 4
Missed meetings before a seat may be declared vacant	3 consecutive regular meetings	By-Laws Art. V §1(e) · p. 3
Signatures on every check and note	2: Treasurer plus President or a Vice-President	By-Laws Art. VIII §6 · p. 7
Architectural decision deadline	30 days, or the request is deemed approved	Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)
Architectural appeal	Meeting within 2 weeks; written decision within 30 days after the meeting	Decl. of Restrictions Art. II §2 · p. 6 (Bk 819/335)
Shed / outbuilding size	120 sq ft floor area max (garages exempt)	Decl. of Restrictions Art. I §1 · p. 2 (Bk 819/331)
Antenna height	10 ft above the roof peak, max	Decl. of Restrictions Art. I §5 · p. 3 (Bk 819/332)
Satellite dish	4 ft diameter, max	Decl. of Restrictions Art. I §5 · p. 3 (Bk 819/332)
Pickups and vans	Pickups up to and including 3/4 ton; enclosed vans up to 10,000 lbs G.V.W.; 7 ft tall max	Decl. of Restrictions Art. I §7 · p. 3 (Bk 819/332)
Traffic-island parking	No more than 48 hours total in any 7 consecutive days	Decl. of Restrictions Art. I §7 · p. 3 (Bk 819/332)
"For Sale" sign	One sign, 6 sq ft max	Decl. of Restrictions Art. I §8 · p. 3 (Bk 819/332)
Fence heights	6 ft (on the line between two lots); 4 ft (other fences)	Decl. of Restrictions Art. I §9 · p. 4 (Bk 819/333)

Item	Number	Where written
Fence rear setback	15 ft from the rear lot line (see exceptions)	Decl. of Restrictions Art. I §9 · p. 4 (Bk 819/333)
Privacy fence	6 ft high; 2,000 sq ft enclosed; 60 ft per section	Decl. of Restrictions Art. I §10 · p. 4 (Bk 819/333)
Clothesline / fenced solar panel	6 ft tall max, inside a privacy fence	Decl. of Restrictions Art. I §12 · p. 4 (Bk 819/333); Art. I §13 · p. 5 (Bk 819/334)
Dog curfew	Not outside 10:00 p.m. to 6:00 a.m. unless accompanied	Decl. of Restrictions Art. I §3 · pp. 2–3 (Bk 819/331–332)
Power-equipment hours	Not before 7:00 a.m. or after 9:00 p.m.	Decl. of Restrictions Art. I §14 · p. 5 (Bk 819/334)
Amend the Decl. of Restrictions	Signed by record owners of 2/3 of the lots, then recorded	Decl. of Restrictions Art. VI · p. 11 (Bk 819/340)
Amend the 1988 Declaration	Approval of New Castle County Council required	1988 Declaration ¶16 · pp. 6–7 (Bk 815/310–311)
Amend the By-Laws	Majority of a quorum of members (**Conflict**, see Watch-outs)	By-Laws Art. XII §1 · pp. 9–10
Entrance-sign easement	Parcel #1 (labeled "Easement ①" on the plat): 349.56± sq ft (0.008± acre); Parcel #1A: strip 15 ft deep along about 300 ft of road	Easement plat · p. 5; Easement ¶2 · p. 2 (Bk 2840[?]/309)

Membership & voting

Rule (plain English)	Details	Where written
Every lot owner is automatically a member.	Starts when the owner takes title. Buyers agree, by accepting the deed, to follow HRMA's rules.	Cert. of Inc. Fourth · p. 1; Decl. of Restrictions Art. IV §1 · p. 7 (Bk 819/336); 1988 Declaration ¶6(a) · pp. 2–3 (Bk 815/306–307)
One member per lot.	All co-owners of a lot together count as one member.	Cert. of Inc. Fourth · p. 2; Decl. of Restrictions Art. IV §1 · p. 7 (Bk 819/336)
One vote per lot.	Co-owners decide among themselves how to cast it.	Decl. of Restrictions Art. IV §2 · p. 7 (Bk 819/336); 1988 Declaration ¶8 · p. 5 (Bk 815/309)
The developer's Class B (3 votes per lot) has ended.	Converted to Class A no later than Dec. 31, 1999. All voting is now Class A. **Dev-era.**	Decl. of Restrictions Art. IV §2 · pp. 7–8 (Bk 819/336–337); Cert. of Inc. Fourth · p. 2

Rule (plain English)	Details	Where written
Members may use the Private Open Space, subject to Board rules.	Owners' use right covers the Private Open Space **and the Traffic Islands**; it is permanent ("forever") and shared with others entitled to use them, subject to rules HRMA adopts under 1988 Declaration ¶9.	By-Laws Art. III §2 · p. 2; 1988 Declaration ¶13 · p. 6 (Bk 815/310)
A member may share open-space use with family members who live in Hunter's Ridge, tenants who live there under leases of 1 year or more, and guests of any of them.	Member must give the Secretary their names and relationship in writing. The Board can suspend their privileges the same way as a member's, under the Rules.	By-Laws Art. III §2 · p. 2
Proxies must be in writing and filed with the Secretary when the meeting starts.	Void if more than 11 months old, or if the giver is not a qualified member on the meeting date.	By-Laws Art. IV §4 · p. 3

Board of directors

Rule (plain English)	Details	Where written
The Board runs HRMA.	It holds all HRMA powers except those expressly reserved to members.	Cert. of Inc. Seventh · p. 2; By-Laws Art. V §1, §1(d) · p. 3
At least 3 directors.	No maximum. Term length is not stated anywhere.	By-Laws Art. V §1 · p. 3
Board hires and removes officers, agents and employees at will; sets duties and pay.	May require fidelity bonds. Nothing bars hiring a member, officer or director.	By-Laws Art. V §1(a) · p. 3
Board establishes, levies, assesses and collects the annual assessment and all other charges referred to in the Documents.	This is the Board's By-Laws power to bill and collect; see Assessments.	By-Laws Art. V §1(b) · p. 3
Board adopts and publishes rules for Association property and conduct there.	Rules Committee drafts on request. No rule takes effect until the Board adopts it.	By-Laws Art. V §1(c) · p. 3; Art. IX §3 · p. 8
Board must keep full records, give members a statement of them, and supervise officers, agents and employees.	Statement at the Annual Meeting, or a special meeting when requested in writing. **Unclear** ("or").	By-Laws Art. V §2(a)–(b) · pp. 3–4
Director misses 3 regular meetings in a row: the Board may declare the seat vacant.	Optional. Must act at the meeting where the third absence happens.	By-Laws Art. V §1(e) · p. 3

Rule (plain English)	Details	Where written
Vacancies are filled by a majority of the remaining directors, even if less than a quorum.	**Conflict** on how long the appointee serves (Cert.: until the next annual members' meeting; By-Laws: rest of the predecessor's term).	By-Laws Art. V "Vacancies" · p. 4; Cert. of Inc. Seventh · p. 2
Board annual meeting is held right after the Annual Members' Meeting.	Elects officers and appoints committees.	By-Laws Art. VI §1 · p. 4; Art. VIII §2 · p. 7; Art. IX §1 · p. 8
Regular meetings: first Tuesday of June, September, December, 8:00 p.m., at the office.	Board may change by resolution. On a holiday, meet at the same hour on the next non-holiday. No notice needed.	By-Laws Art. VI §2–§3 · p. 4
Special meetings: the Secretary calls one when any officer or any 2 directors ask.	Notice by mail 3+ days ahead, or in person or by phone by the day before. Attending, or a written waiver, replaces notice.	By-Laws Art. VI §3 · p. 4; Art. VI §4 · p. 5
Quorum is a majority of the Board; a majority of directors present at a quorum decides.		By-Laws Art. VI §5 · p. 5
Action not taken at a regularly called meeting: a majority's action is valid if **every** director assents in writing to the record of the meeting.	The text speaks of a meeting "not at a regularly called meeting" and its "record"; whether it also covers action with no meeting at all is **Unclear**.	By-Laws Art. VI §4 · p. 5
Directors aren't personally liable to HRMA or its members for money damages for breach of fiduciary duty as a director.	Except: disloyalty; bad faith, intentional misconduct or knowing violation of law; Section 174 of the Delaware General Corporation Law; improper personal benefit. **Unclear** ("stockholders").	Cert. of Inc. Eighth · pp. 2–3
Board candidates don't have to be members.		By-Laws Art. VII §3 · p. 5

Officers & committees

Rule (plain English)	Details	Where written
Officers: President, one or more Vice-Presidents, Secretary, one or more Assistant Secretaries, Treasurer.	The President and at least one VP must be directors.	By-Laws Art. VIII §1 · pp. 6–7; Cert. of Inc. Seventh · p. 2
The Board elects officers by majority at its annual meeting.	They serve until the next Board annual meeting and until a successor is elected, unless they die, resign or are removed first. The Board may remove them at any time.	By-Laws Art. VIII §2 · p. 7; Art. V §1(a) · p. 3

Rule (plain English)	Details	Where written
President: chief executive, chairs Board meetings, signs Board-authorized documents.	Notes, leases, mortgages, deeds and similar, unless the Board assigns signing to someone else.	By-Laws Art. VIII §3 · p. 7
Vice-Presidents act for an absent or disabled President, in the order named.		By-Laws Art. VIII §4 · p. 7
Secretary: minutes and votes, member names and addresses, required notices, records, seal, membership certificates.	Also calls special meetings, receives proxies and open-space user notices, mails ballots.	By-Laws Art. VIII §5 · p. 7; Art. III §2 · p. 2; Art. IV §2–§4 · pp. 2–3; Art. VII §4 · pp. 5–6
Treasurer deposits funds in Board-approved accounts and pays as the Board resolves.	No resolution needed for ordinary spending within a Board-adopted budget.	By-Laws Art. VIII §6 · p. 7
Every check and note needs the Treasurer plus the President or a VP.		By-Laws Art. VIII §6 · p. 7
Treasurer keeps the books, gets an annual CPA audit, and prepares the budget and balance sheet for the Annual Meeting.	The fiscal year is not defined.	By-Laws Art. VIII §7 · p. 8
Treasurer makes the entries in the Assessment Lien Docket, which HRMA keeps at its registered office.	See Assessments.	Decl. of Restrictions Art. V §7 · p. 10 (Bk 819/339)
Standing committees: Nominating, Rules, Recreation, Maintenance, Publicity, Audit.	Default: a chair plus 2 or more members as the Board determines, at least one a director; appointed at the Board annual meeting to serve until the next one. Exception: the Nominating Committee is appointed under By-Laws Art. VII §2 · p. 5 instead. The Board may add others.	By-Laws Art. IX §1 · p. 8
Audit Committee supervises the audit and approves the budget and balance sheet.	The Treasurer is an automatic member.	By-Laws Art. IX §7 · p. 9
Recreation and Maintenance Committees advise the Board; Publicity informs members and issues public releases only after consulting the Board.	Committees other than Nominating may form subcommittees.	By-Laws Art. IX §4–§5 · p. 8; Art. IX §6, §8 · p. 9
Every committee must accept member complaints in its area and handle or refer them.		By-Laws Art. IX §9 · p. 9
Any member may inspect HRMA's books, records and papers during reasonable business hours.		By-Laws Art. X · p. 9

Member meetings & elections

Rule (plain English)	Details	Where written
Annual meeting: first Tuesday in March, 8:00 p.m.	At the office (201 Bridle Path Drive, Newark, DE 19711) unless the notice names another address.	By-Laws Art. IV §1 · p. 2; Art. II · p. 1
Special meetings may be called by the President, the "Executive Vice-President," or 3 or more directors.	**Unclear:** Article VIII creates no "Executive Vice-President."	By-Laws Art. IV §2 · p. 2
The Secretary must call a special meeting when members holding one-fourth of all votes ask in writing.		By-Laws Art. IV §2 · p. 2
The Secretary gives notice in person or by prepaid mail to the address on the books, 10 to 50 days ahead, stating the purposes.	Members must register address changes with the Secretary.	By-Laws Art. IV §3 · pp. 2–3
Quorum: 60% of the total membership vote, in person or by proxy.	Applies to any membership meeting.	By-Laws Art. IV §4 · p. 3
Directors are elected by written ballot; the most votes wins.	At the annual meeting, or at a special meeting called to elect directors. Members cast their votes "in respect of each vacancy" (see Watch-outs).	By-Laws Art. VII §1 · p. 5
Nominating Committee: a director (chair) plus one or more members, appointed by the Board before each annual meeting.	Its members are announced at the annual meeting. It must nominate at least one candidate per open seat, before ballots are mailed.	By-Laws Art. VII §2–§3 · p. 5
The ballot lists the open seats and nominees, with a write-in space for each seat.	The Secretary mails it at least 14 days before the return date. The return date is no later than the day before the meeting.	By-Laws Art. VII §4 · pp. 5–6
A returned ballot shows the member's name, signature and number of votes.	Ballots are not anonymous.	By-Laws Art. VII §5 · p. 6
A 3-person Election Committee gets the unopened envelopes, checks each voter, signature and proxy, and counts.	Results are announced at the meeting. Ballots are kept 90 days, then destroyed.	By-Laws Art. VII §6 · p. 6
Members also vote on: changing the annual assessment (2/3 of those present), and removing open-space structures (a majority of members).		Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337); 1988 Declaration ¶6(b) · p. 3 (Bk 815/307)

Assessments, liens & collections

Rule (plain English)	Details	Where written
Every owner must pay annual assessments, plus special assessments for capital improvements.	Agreed to by accepting the deed.	1988 Declaration ¶6(b) · p. 3 (Bk 815/307); Decl. of Restrictions Art. V §1 · p. 8 (Bk 819/337)
Every lot pays the same rate, regardless of size.		1988 Declaration ¶6(b)–(c) · p. 3 (Bk 815/307); Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337)
Money may be used to maintain the Private Open Space and Traffic Islands, including taxes, insurance, grass and landscaping, and for the Cert.'s other purposes.	May include reserves.	Decl. of Restrictions Art. V §2 · p. 8 (Bk 819/337); Art. V §3 · pp. 8–9 (Bk 819/337–338)
Assessments must be big enough to keep the areas and their improvements in good usable condition, pay all costs of owning them (including real property taxes, and insurance to the extent the members or a majority of them think it necessary), and offset uncollected past assessments.	Assessments may also pay for improvements on the areas (e.g., storage for tools and supplies, guard or gate house, dams, bridges, courts, "paying fields") and for security and/or maintenance staff, including salaries, to the extent the members or a majority of them think necessary. The Decl. of Restrictions separately requires the annual assessment, in total, to be enough to maintain HRMA's property, including grass cutting, normal landscaping, and insurance premiums and taxes.	1988 Declaration ¶6(b) · p. 3 (Bk 815/307); Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337)
The Board fixes the annual amount each year, before March 1.	The Cert. says the Board "shall levy" it at the regular Board meeting before the annual meeting.	By-Laws Art. V §2(c)(i) · p. 4; 1988 Declaration ¶6(c) · p. 3 (Bk 815/307); Cert. of Inc. Seventh · p. 2
Any change in the annual assessment needs 2/3 of Class A members present at a meeting called for that purpose.	The written notice must state the purpose. **Conflict** with board-fixing; see Watch-outs.	Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337)
The Board fixes special assessments as needed.	No vote or cap is stated. **Unclear.**	By-Laws Art. V §2(c)(ii) · p. 4

Rule (plain English)	Details	Where written
Keep a roster of every property and its assessment at the office, open to members. Send each owner written notice of each assessment.		By-Laws Art. V §2(c)(iii)–(iv) · p. 4
Due March 1; the assessment year is March 1 to February 28.		Decl. of Restrictions Art. V §4 · p. 9 (Bk 819/338)
20% discount if the treasurer receives payment "prior to the thirty-first day of March."	**Unclear** whether March 31 counts.	Decl. of Restrictions Art. V §5 · p. 9 (Bk 819/338)
Unpaid before April 1 = delinquent.	Then interest at the Delaware legal rate from the due date, plus collection costs and reasonable attorney's fees, all a continuing lien on the lot.	Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338)
The 1988 version: delinquent if not paid when due; if still unpaid 30 days after the due date, interest at the Delaware legal rate runs from the date of delinquency.	No percentage is stated and no late fee exists in either Declaration.	1988 Declaration ¶6(d) · pp. 3–4 (Bk 815/307–308)
HRMA may sue the owner personally or go to court to foreclose the lien.	Interest, costs and reasonable attorney's fees are added.	Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338); 1988 Declaration ¶6(d) · pp. 3–4 (Bk 815/307–308)
Owners give HRMA the right to bring any suit it thinks necessary to collect.	**Unclear** ("in his own name").	1988 Declaration ¶6(f) · p. 4 (Bk 815/308)
Not using the common areas, or abandoning the lot, doesn't excuse payment.		1988 Declaration ¶6(d) · p. 4 (Bk 815/308)
The duty to pay starts when the owner takes title. A mortgage lender isn't an "owner" for this.	Each assessment, with interest, costs and reasonable attorney's fees, is a lien on the lot.	1988 Declaration ¶6(e) · p. 4 (Bk 815/308); ¶6(b) · p. 3 (Bk 815/307)
HRMA's lien always ranks **behind** any mortgage.	A buyer at a mortgage foreclosure owes nothing from before the foreclosure, but does owe assessments after it.	Decl. of Restrictions Art. V §6 · pp. 9–10 (Bk 819/338–339); 1988 Declaration ¶6(g) · p. 4 (Bk 815/308)
Lien Docket: the Treasurer logs each delinquency immediately.	Entry date, owners' names, lot number, amount, due date, assessment period. When paid: date, amount and "Paid in Full."	Decl. of Restrictions Art. V §7 · pp. 10–11 (Bk 819/339–340)

Rule (plain English)	Details	Where written
Status certificate: on a written request from any lot owner, or from an attorney who certifies that he represents an owner or a buyer, plus $10.00, the Treasurer certifies whether the lot is paid up.	If delinquent: the docket details and daily interest. It binds HRMA. If it is not mailed within 5 business days after HRMA receives the written request and the fee, all assessments on the lot are deemed paid in full "within the discounted period" (that is, as if paid in time for the discount).	Decl. of Restrictions Art. V §7 · pp. 10–11 (Bk 819/339–340)
The By-Laws also require a paid-status certificate on demand by **any person**; it is conclusive.	No fee is stated. **Conflict** on who may ask and the fee.	By-Laws Art. V §2(d) · p. 4
Developer lots were exempt; the developer paid upkeep until Aug. 1, 1990.	**Dev-era.**	Decl. of Restrictions Art. V §8 · p. 11 (Bk 819/340); Art. V §3 · p. 9 (Bk 819/338)

Architectural review

The Decl. of Restrictions names the **"Declarant"** (the developer) as the reviewer and lets it hand the power to the HRMA Board. These documents don't show whether that hand-off happened. Confirm it (see Watch-outs).

Rule (plain English)	Details	Where written
Written approval is needed **before** starting: any building, outbuilding, shed, satellite dish, fence, wall, swimming pool, solar panel, screens or screening, or other construction.	Exception: a solar panel enclosed in a privacy fence.	Decl. of Restrictions Art. II §1 · pp. 5–6 (Bk 819/334–335)
Also needs approval: any exterior addition, change or alteration, **including exterior color changes and grade or drainage changes**.		Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)
The application must include plans and specifications with illustrations.	Show the nature, kind, shape, color, height, materials and proposed location.	Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)
No decision within 30 days of submission = approved.		Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)

Rule (plain English)	Details	Where written
The reviewer must weigh four factors.	(1) Harmony with neighboring structures and their view. (2) Light and air to neighbors. (3) Design, color, height, size, shape, location and materials consistent with the house and surroundings. (4) Physical impact, including drainage.	Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)
The Declarant alone decides which lot or street lines are "front" or "side."	Passes to the Board only if assigned. **Unclear.**	Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)
Appeal: a rejected applicant may appeal in writing.	Special meeting with the applicant within 2 weeks of receipt; written decision within 30 days after that meeting, or the rejection is cancelled.	Decl. of Restrictions Art. II §2 · p. 6 (Bk 819/335)
The developer may assign review powers to the HRMA Board; its Ad Hoc Committee then ends.	**Dev-era.**	Decl. of Restrictions Art. II §2–§3 · pp. 6–7 (Bk 819/335–336)
The developer and same-business successors are exempt from review.	**Dev-era.**	Decl. of Restrictions Art. III §1 · p. 7 (Bk 819/336)

Use restrictions

All rows are from the Decl. of Restrictions unless the citation says otherwise. **Lots 1–5:** these Article I rules apply to Lots 1–5 only after one of three triggers (see the last row).

Rule (plain English)	Details	Where written
Homes: no more than 72, and only single-family detached houses.		1988 Declaration ¶1–¶2 · p. 2 (Bk 815/306)
Residential use only. Only a house plus usual outbuildings (garages, storage sheds, dog houses, play houses).	Must meet building codes and County zoning.	Decl. of Restrictions Art. I §1 · p. 2 (Bk 819/331)
Sheds and outbuildings: 120 sq ft max floor area; behind the house's rear-most wall; approval needed.	Garages are exempt from both limits.	Decl. of Restrictions Art. I §1 · p. 2 (Bk 819/331)
Metal sheds: prefabricated metal sheds or buildings are banned.	No approval route.	Decl. of Restrictions Art. I §1 · p. 2 (Bk 819/331)
Trailers, mobile homes, temporary structures: banned on lots.		Decl. of Restrictions Art. I §2 · p. 2 (Bk 819/331)

Rule (plain English)	Details	Where written
Animals: usual household pets only.	No horses, cows, goats, sheep, hogs, poultry, pigeons, bees or similar.	Decl. of Restrictions Art. I §3 · p. 2 (Bk 819/331)
Dogs: no running loose in violation of law; not outside 10:00 p.m. to 6:00 a.m. unless with a responsible person.		Decl. of Restrictions Art. I §3 · pp. 2–3 (Bk 819/331–332)
Vegetable gardens: behind the house's rear-most wall.		Decl. of Restrictions Art. I §4 · p. 3 (Bk 819/332)
Antennas: banned, except an antenna attached to the house that rises no more than 10 ft above the roof peak.	Satellite dishes don't qualify under this exception.	Decl. of Restrictions Art. I §5 · p. 3 (Bk 819/332)
Satellite dishes: allowed only if 4 ft diameter or less, approved, **and** hidden inside a privacy fence.		Decl. of Restrictions Art. I §5 · p. 3 (Bk 819/332)
Trash cans: kept enclosed and out of sight.	At the curb only temporarily on collection days.	Decl. of Restrictions Art. I §6 · p. 3 (Bk 819/332)
Trucks, buses, boats, trailers, campers, disabled vehicles: not on any street, lot or driveway unless inside an enclosed garage.		Decl. of Restrictions Art. I §7 · p. 3 (Bk 819/332)
Pickups and vans: pickups up to 3/4 ton and enclosed vans up to 10,000 lbs G.V.W. are OK in a garage or on the driveway.	7 ft tall max. Not on the street.	Decl. of Restrictions Art. I §7 · p. 3 (Bk 819/332)
Traffic-island parking spaces: no vehicle more than 48 hours total in any 7 consecutive days.		Decl. of Restrictions Art. I §7 · p. 3 (Bk 819/332)
Signs: none, except one real-estate "For Sale" sign of 6 sq ft or less.		Decl. of Restrictions Art. I §8 · p. 3 (Bk 819/332)
Fences, location: behind the house's rear-most wall.	A fence on the line between two lots may run forward along the side line, only on the garage side: to the front-most wall (attached garage) or the detached garage's rear-most wall. **Unclear.**	Decl. of Restrictions Art. I §9 · pp. 3–4 (Bk 819/332–333)
Fences, height: 6 ft max on the line between two lots; 4 ft max for other fences.	Privacy fences follow §10.	Decl. of Restrictions Art. I §9 · p. 4 (Bk 819/333)
Fences, rear setback: none on or within 15 ft of the rear lot line.	Exceptions in the next two rows.	Decl. of Restrictions Art. I §9 · p. 4 (Bk 819/333)

Rule (plain English)	Details	Where written
Lots backing to **private open space** may fence around the house, an addition such as a deck, or a pool inside the 15 ft zone.	Any part in that zone must be within 6 ft of the house, addition or pool water, and must not block Plan easements or walkways.	Decl. of Restrictions Art. I §9 · p. 4 (Bk 819/333)
Lots backing to **another subdivision or to Lot 5** may fence the rear line and the side lines leading to it.		Decl. of Restrictions Art. I §9 · p. 4 (Bk 819/333)
Fences, material: all-weather pressure-treated wood only; approval needed.		Decl. of Restrictions Art. I §9 · p. 4 (Bk 819/333)
Privacy fences: closely enclose a small rear area near the house (e.g., a patio).	6 ft high max; pressure-treated wood; 2,000 sq ft enclosed max; no section over 60 ft; approval needed.	Decl. of Restrictions Art. I §10 · p. 4 (Bk 819/333)
Pools: no above-ground pools. In-ground pools are OK with approval.		Decl. of Restrictions Art. I §11 · p. 4 (Bk 819/333)
Clotheslines: only inside a privacy fence, 6 ft tall max.		Decl. of Restrictions Art. I §12 · p. 4 (Bk 819/333)
Solar panels: on the rear roof with approval, or 6 ft tall max completely inside a privacy fence.	The fenced panel itself needs no approval; the fence does.	Decl. of Restrictions Art. I §13 · p. 5 (Bk 819/334); Art. II §1 · p. 5 (Bk 819/334)
Power equipment (mowers, chainsaws and similar): not before 7:00 a.m. or after 9:00 p.m.		Decl. of Restrictions Art. I §14 · p. 5 (Bk 819/334)
Curb strip: abutting owners alone must grade, seed and maintain the ground between curb and property line, and care for the curb and trees.		Decl. of Restrictions Art. I §17 · p. 5 (Bk 819/334)
Windows and doors: nothing may hang or stick out.	Rugs, laundry, aerials, fans, air conditioners, wires and the like.	Decl. of Restrictions Art. I §18 · p. 5 (Bk 819/334)
Window treatments: shades, curtains and all blinds white or off-white; draperies lined in white or off-white.		Decl. of Restrictions Art. I §18 · p. 5 (Bk 819/334)
Screens and screening not installed by the developer need approval.		Decl. of Restrictions Art. I §18 · p. 5 (Bk 819/334)
Exterior color, additions, grade or drainage changes need approval.		Decl. of Restrictions Art. II §1 · pp. 5–6 (Bk 819/334–335)

Rule (plain English)	Details	Where written
Lots 1–5: Article I applies at the earliest of three triggers.	(a) A lot is no longer both owned and possessed by Paul and/or Dorothy Schlosser; (b) construction of a residence starts on one; (c) Lot 1 is denied vehicle access to Polly Drummond Road. **Unclear** whether any has happened.	Decl. of Restrictions Art. XI §3 · p. 14 (Bk 819/343)

Common property, maintenance & easements

Rule (plain English)	Details	Where written
HRMA's purpose is to own and maintain the Private Open Space and the Traffic Islands ("Association Property").	"Traffic Islands" include the common parking spaces next to them.	Cert. of Inc. Third · p. 1; By-Laws Art. I · p. 1; Decl. of Restrictions Preamble · p. 1 (Bk 819/330)
HRMA must keep them in good and usable condition.		1988 Declaration ¶7 · pp. 4–5 (Bk 815/308–309)
HRMA may never close or block them, except temporarily for maintenance, repairs or safety.	Building or converting recreation, maintenance or security improvements is still allowed. HRMA may adopt rules on use of these areas for the benefit of everyone entitled to use them.	1988 Declaration ¶9 · p. 5 (Bk 815/309)
Existing trees and plants in the Private Open Space must stay undisturbed.	Exceptions: installing utilities; water facilities (a well or wells within 15 ft of the present wellhead, with related above-ground facilities of no more than 1/10 acre in total, serviced by temporary easement only); and building roads. Areas disturbed by utility or road work must be restored to their original condition consistent with good engineering practices. **Unclear**; see Watch-outs.	1988 Declaration ¶5 · p. 2 (Bk 815/306)
Recreation, security or maintenance buildings may go in the open space, with Declarant approval of location and design.	**Dev-era / Unclear.**	1988 Declaration ¶3 · p. 2 (Bk 815/306)
A majority of members may remove recreation, maintenance or security structures.		1988 Declaration ¶6(b) · p. 3 (Bk 815/307)

Rule (plain English)	Details	Where written
If HRMA (or the Declarant) fails or declines to maintain the areas and their improvements, New Castle County may enter and maintain them at the lot owners' expense.	No notice or cure period is stated.	1988 Declaration ¶11 · p. 5 (Bk 815/309)
County costs are split among the lots; a County lien ranks by recording date and **can come ahead of mortgages**.	Unlike HRMA's own lien.	1988 Declaration ¶12 · pp. 5–6 (Bk 815/309–310)
Snow plowing of the roads is an allowed activity (not required).	It is one example of HRMA's catch-all purpose: to transact any other business not inconsistent with the functions of a maintenance corporation and/or civic association in New Castle County.	Cert. of Inc. Third · p. 1
Easements and rights-of-way on the Plan are reserved.	See the recorded Plan, Microfilm No. 9600.	Decl. of Restrictions Art. I §15 · p. 5 (Bk 819/334)

Entrance-sign easement (2000)

Rule (plain English)	Details	Where written
HRMA has a permanent, shared easement to install, build, inspect, repair, replace and maintain the entrance sign and landscaping on "Parcel #1" of the Schlosser lot.	Tax Parcel 08-036.10-257, Deed Book 2236, Page 151.	Easement ¶1 · p. 1
HRMA also has a right of access for maintenance and landscaping over "Parcel #1A": a strip 15 ft deep along about 300 ft of Ebenezer Church Road.	**Unclear:** "1A" is handwritten and the description has a direction error.	Easement ¶2 · p. 2 (Bk 2840[?]/309)
Both parcels together are the "Maintenance Easement Area."		Easement ¶3 · p. 2 (Bk 2840[?]/309)
HRMA pays all costs: building, landscaping, maintenance, repair and restoration.		Easement ¶4 · p. 2 (Bk 2840[?]/309)
HRMA must follow all applicable rules, laws and regulations on the repair, maintenance and use of the area, and must get, at its own expense, any required permits or licenses for construction and landscaping.		Easement ¶5 · p. 2 (Bk 2840[?]/309)

Rule (plain English)	Details	Where written
HRMA owns the sign, stone facing, footings, lighting, electric fixtures and all landscaping.		Easement ¶6 · p. 2 (Bk 2840[?]/309)
HRMA is **not** responsible for snow removal or sanding of the sidewalk in front.	It doesn't say who is.	Easement ¶7 · p. 2 (Bk 2840[?]/309)
Once HRMA starts sign or landscaping work, it must finish within a reasonable time.		Easement ¶8 · p. 2 (Bk 2840[?]/309)
Each side indemnifies the other for claims involving the easement area.	**Unclear:** as written, each party protects the other from claims arising from acts, conduct, errors or omissions "by the other party" (the party being protected). It also covers officers, agents, employees, tenants, licensees, successors and assigns, and includes reasonable attorney's fees and litigation expenses. Ask counsel.	Easement ¶9 · p. 2 (Bk 2840[?]/309)
The agreement binds future owners of the Schlosser lot and HRMA's successors.		Easement ¶10 · p. 3
Signed for HRMA by President David Bonner, attested by the Secretary (no typed name); signed by Paul Schlosser.	HRMA's acknowledgment was taken Mar. 13, 2000 before a New Jersey notary (form names "Hunter's Ridge Maintenance Corporation"); Schlosser's was taken Feb. 18, 2000 in New Castle County.	Easement · p. 3; Easement · p. 4 (Bk 2840/311[?])
The plat also shows a second sign easement (668.22± sq ft) on a neighboring lot. **This agreement does not grant it.**	The plat labels it "Easement ②" on the lands of Robert G. Bu[illegible], Deed Book 1782, Page 262 (page digits faint). Check for a separate recorded easement.	Easement plat · p. 5

Enforcement & remedies

Rule (plain English)	Details	Where written
Enforcing (and amending) the covenants is one of HRMA's purposes.		Cert. of Inc. Third · p. 1
The covenants are enforced in court against anyone who violates or tries to violate them.	The court can stop the violation, award damages, or enforce a lien on the land.	Decl. of Restrictions Art. VIII · p. 12 (Bk 819/341)

Rule (plain English)	Details	Where written
Who may sue: the Declarant (and its successors and assigns), or **any owner** of land in Hunter's Ridge.	The developer could assign its enforcement power to HRMA by a recorded document. These files don't show one.	Decl. of Restrictions Art. VIII · pp. 12–13 (Bk 819/341–342)
The loser pays the winner's reasonable attorney's fees, unless the court orders otherwise.		Decl. of Restrictions Art. VIII · p. 13 (Bk 819/342)
Not enforcing a rule doesn't give up the right to enforce it, or any other rule, later.		Decl. of Restrictions Art. VIII · p. 12 (Bk 819/341)
The Board may suspend open-space privileges under the Rules and Regulations.	The grounds and procedure must come from the Rules.	By-Laws Art. III §2 · p. 2
A notice is properly sent once mailed, postage paid, to the last known address on HRMA's records.		Decl. of Restrictions Art. IX · p. 13 (Bk 819/342)
If a court strikes down one rule, the rest still stand.		Decl. of Restrictions Art. X · p. 13 (Bk 819/342)
The 1988 covenants run with the land forever and benefit New Castle County.		1988 Declaration ¶10 · p. 5 (Bk 815/309); Preamble · pp. 1–2 (Bk 815/305–306)
The Declarations bind only land on the Plan of Hunter's Ridge.		Decl. of Restrictions Art. XI §1 · p. 13 (Bk 819/342); 1988 Declaration ¶17 · p. 7 (Bk 815/311)

Changing the documents

Rule (plain English)	Details	Where written
Decl. of Restrictions: change or end any part with a written document signed by the record owners of 2/3 of the lots, recorded with the New Castle County Recorder of Deeds.	The developer's solo amendment rights are **Dev-era**.	Decl. of Restrictions Art. VI · pp. 11–12 (Bk 819/340–341)
1988 Declaration: no change without approval of the New Castle County Council.	No owner vote or procedure is stated.	1988 Declaration ¶16 · pp. 6–7 (Bk 815/310–311)
By-Laws (By-Laws version): members amend at a regular or special meeting by a majority of a quorum, in person or by proxy.	Can't change matters covered by the Cert. or Documents except as they allow. **Conflict** and **Unclear**.	By-Laws Art. XII §1 · pp. 9–10

Rule (plain English)	Details	Where written
By-Laws (Cert. version): after the original By-Laws, the power to make, alter or repeal them belongs to the Directors.	The Cert. controls over the By-Laws (By-Laws Art. XII §2 · p. 10).	Cert. of Inc. Sixth · p. 2
Rules and Regulations: the Board adopts and publishes them.	They must not conflict with the Declaration. The Declaration's grant is for rules "governing the use of the said Private Open Space and Traffic Islands."	By-Laws Art. V §1(c) · p. 3; Art. IX §3 · p. 8; Decl. of Restrictions Art. IV §3 · p. 8 (Bk 819/337)
Record Plan: the developer could amend it within limits, using owners' power of attorney.	No density increase, no open-space decrease, no street realignment where non-developer lots abut. **Dev-era.**	Decl. of Restrictions Art. VII · p. 12 (Bk 819/341)

Board playbooks

Steps marked **(good practice)** are recommendations, not requirements of the documents.

1. Reviewing an architectural request

1. Confirm the Board holds the review power. The Declaration names the "Declarant," which "may assign" the power to the Board. Find the assignment in HRMA's records; if there is none, ask counsel. (Decl. of Restrictions Art. II §2 · p. 6 (Bk 819/335))
2. Confirm the project needs approval. Check the list: structures, sheds, dishes, fences, walls, pools, solar, screens, exterior changes, color, grade or drainage. (Decl. of Restrictions Art. II §1 · pp. 5–6 (Bk 819/334–335))
3. Date-stamp the submission the day it arrives. **The 30-day clock starts at submission; silence means approval.** (Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335))
4. Check it is complete: plans and specifications with illustrations showing nature, kind, shape, color, height, materials and location. (Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)) Ask promptly for anything missing, in writing (good practice).
5. Check the hard limits in Article I first (e.g., wood-only fences, 120 sq ft sheds, no metal sheds, no above-ground pools, privacy-fence limits). (Decl. of Restrictions Art. I §1–§18 · pp. 2–5 (Bk 819/331–334))
6. Apply the four review factors: harmony, light and air, consistent design and materials, physical impact including drainage. (Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335))
7. Decide by Board vote (By-Laws Art. VI §5 · p. 5). An approval must be **in writing** (Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)). Put rejections in writing too, stating the reasons and citing the rule (good practice; the Declaration requires a written decision only on appeal, Art. II §2 · p. 6 (Bk 819/335)).

8. If the owner appeals in writing: hold a special meeting with the applicant **within 2 weeks** of receiving the appeal, and send the written decision **within 30 days after that meeting**. Missing the 30 days cancels the rejection. (Decl. of Restrictions Art. II §2 · p. 6 (Bk 819/335))
9. File the application, decision and any appeal with HRMA's records (good practice). Members may inspect them. (By-Laws Art. X · p. 9)

2. Handling a suspected violation

1. Identify the exact rule and citation in this guide, then read the original (good practice). For Lots 1–5, first check whether Article I applies yet. (Decl. of Restrictions Art. XI §3 · p. 14 (Bk 819/343))
2. Check whether the item was approved, or deemed approved after 30 days. (Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335))
3. Document it with dates and photos taken from public or common areas (good practice).
4. If a member complained, the responsible committee must receive it and handle or refer it. (By-Laws Art. IX §9 · p. 9)
5. Send a courteous written notice to the owner's address on HRMA's records. Mailed, postage paid, counts as properly sent. (Decl. of Restrictions Art. IX · p. 13 (Bk 819/342)) Give a reasonable time to fix it and offer to talk (good practice; the documents set no cure period or hearing).
6. For misuse of the open space, the Board may suspend privileges only as the Rules and Regulations provide. (By-Laws Art. III §2 · p. 2)
7. If it isn't resolved, consult counsel before any lawsuit (good practice), including on whether HRMA can sue in its own right. The Declaration lets the Declarant or **any owner** sue, and lets the Declarant assign enforcement to HRMA by a recorded document. Remedies are an order to stop, damages or lien enforcement; the loser pays reasonable attorney's fees unless the court orders otherwise. (Decl. of Restrictions Art. VIII · pp. 12–13 (Bk 819/341–342))
8. Delay doesn't waive the rule (Decl. of Restrictions Art. VIII · p. 12 (Bk 819/341)), but treat similar cases the same way (good practice).

3. Billing and collecting assessments

1. **Set the amount before March 1.** One rate for every lot. (By-Laws Art. V §2(c)(i) · p. 4; Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337); 1988 Declaration ¶6(c) · p. 3 (Bk 815/307)) The Cert. says the Board "shall levy" it at the regular Board meeting before the annual meeting. (Cert. of Inc. Seventh · p. 2)
2. **If the amount changes,** get 2/3 of Class A members present at a members' meeting called for that purpose, with written notice stating the purpose. (Decl. of Restrictions Art.

V §3 · p. 8 (Bk 819/337)) Notice goes out 10–50 days ahead (By-Laws Art. IV §3 · pp. 2–3) and the 60% quorum applies (By-Laws Art. IV §4 · p. 3). Hold that vote before bills go out (good practice).

3. Update the roster of properties and assessments at the office. (By-Laws Art. V §2(c)(iii) · p. 4)
4. Send every owner written notice of the assessment. (By-Laws Art. V §2(c)(iv) · p. 4) Show the March 1 due date and the 20% discount for payment received before March 31. (Decl. of Restrictions Art. V §4–§5 · p. 9 (Bk 819/338))
5. Deposit payments in Board-approved accounts. (By-Laws Art. VIII §6 · p. 7)
6. **April 1:** anything unpaid is delinquent. Interest at the Delaware legal rate runs from the due date; collection costs and reasonable attorney's fees are added; it's a continuing lien. (Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338))
7. **Immediately** log each delinquency in the Assessment Lien Docket: entry date, owners' names, lot number, amount, due date, assessment period. (Decl. of Restrictions Art. V §7 · p. 10 (Bk 819/339))
8. Send a mid-March reminder, then a written past-due notice offering a payment plan; if still unpaid, consult counsel (good practice). HRMA may sue the owner personally or foreclose the lien in court. (Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338); 1988 Declaration ¶6(d) · pp. 3–4 (Bk 815/307–308))
9. If a lender forecloses, HRMA's lien is behind the mortgage. The foreclosure buyer owes only assessments from after the foreclosure. (Decl. of Restrictions Art. V §6 · pp. 9–10 (Bk 819/338–339))
10. When paid, enter the date, the amount and "Paid in Full" in the Docket. (Decl. of Restrictions Art. V §7 · p. 11 (Bk 819/340))
11. **Status-certificate requests** (often at a home sale): on a written request from an owner or a certifying attorney plus $10.00, the Treasurer certifies the lot's status. Include docket details and daily interest if delinquent. (Decl. of Restrictions Art. V §7 · p. 10 (Bk 819/339))
12. **Mail the certificate within 5 business days** after receiving the written request and the $10.00 fee, or every assessment on that lot is deemed paid in full "within the discounted period." Date-stamp requests on arrival (good practice). (Decl. of Restrictions Art. V §7 · pp. 10–11 (Bk 819/339–340))

4. Calling and running the annual meeting and elections

1. **Before the meeting:** the Board appoints the Nominating Committee: a director as chair plus one or more members. (By-Laws Art. VII §2 · p. 5)
2. The Committee nominates at least one candidate per open seat; candidates may be non-members. Nominations close before ballots are mailed. (By-Laws Art. VII §3 · p. 5)

3. The Secretary prepares written ballots listing the open seats and nominees, with a write-in space for each seat. (By-Laws Art. VII §4 · pp. 5–6)
4. Mail ballots **at least 14 days before the return date**. Set the return date no later than the day before the meeting. (By-Laws Art. VII §4 · p. 6) The ballot asks for the member's name, signature and number of votes. (By-Laws Art. VII §5 · p. 6)
5. Mail the meeting notice **10 to 50 days ahead**, listing every purpose. (By-Laws Art. IV §3 · pp. 2–3) Include any assessment change (Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337)) or By-Law amendment (By-Laws Art. XII §1 · pp. 9–10). Mailing ballots and notice together saves postage (good practice).
6. The annual meeting is the **first Tuesday in March at 8:00 p.m.**, at the office or the address in the notice. (By-Laws Art. IV §1 · p. 2)
7. The Secretary keeps returned ballots safe and hands the **unopened** envelopes to a 3-person Election Committee appointed by the Board, on or after the return date and no later than the meeting day. (By-Laws Art. VII §6 · p. 6)
8. At the start, collect written proxies (reject any over 11 months old) and confirm the quorum: **60% of the total membership vote**, in person or by proxy. (By-Laws Art. IV §4 · p. 3)
9. The Election Committee verifies voters, signatures and proxies, counts, and announces results. The most votes wins. (By-Laws Art. VII §6 · p. 6; Art. VII §1 · p. 5)
10. Announce the Nominating Committee members. (By-Laws Art. VII §2 · p. 5)
11. Present the Board's statement of its acts and affairs (By-Laws Art. V §2(a) · p. 3) and the budget and balance sheet (By-Laws Art. VIII §7 · p. 8), after Audit Committee approval (By-Laws Art. IX §7 · p. 9).
12. The Election Committee keeps ballots for 90 days, then destroys them. (By-Laws Art. VII §6 · p. 6)
13. **Right after adjournment,** hold the Board annual meeting: elect officers by majority (By-Laws Art. VI §1 · p. 4; Art. VIII §2 · p. 7) and appoint standing committees (By-Laws Art. IX §1 · p. 8).

5. Filling a board vacancy

1. A seat opens by resignation or similar. The Board may also declare a seat vacant after 3 straight missed regular meetings, acting at the meeting of the third absence. (By-Laws Art. V §1(e) · p. 3)
2. The remaining directors fill it by majority vote, even if they are fewer than a quorum. (By-Laws Art. V "Vacancies" · p. 4; Cert. of Inc. Seventh · p. 2)
3. Note the term. The Cert. says the appointee serves until the next annual members' meeting; the By-Laws say the rest of the predecessor's term; the Cert. controls over the

By-Laws. (Cert. of Inc. Seventh · p. 2; By-Laws Art. V "Vacancies" · p. 4; Art. XII §2 · p. 10) Put the seat on the next annual ballot unless counsel advises otherwise (good practice).

4. Keep at least 3 directors (By-Laws Art. V §1 · p. 3). The President and at least one VP must be directors. (By-Laws Art. VIII §1 · pp. 6–7) If the departing director held office, the Board may appoint a replacement. (By-Laws Art. V §1(a) · p. 3)
5. If the vote happens other than at a regularly called meeting, have **every** director assent in writing to the record of the meeting; the majority's action is then valid. Whether this covers action with no meeting at all is unclear. (By-Laws Art. VI §4 · p. 5)
6. Record the action in the minutes. (By-Laws Art. VIII §5 · p. 7) Tell the members (good practice).

6. Amending the Declaration or By-Laws

1. Have counsel draft every amendment (good practice).
2. **Decl. of Restrictions:** collect signatures of record owners of **2/3 of the lots** on a written document, then record it with the New Castle County Recorder of Deeds. (Decl. of Restrictions Art. VI · p. 11 (Bk 819/340)) If there are 72 lots (Exhibit A lists Lots 1–72), that would be 48; confirm the current lot count from the recorded Plan (good practice).
3. **1988 Declaration:** no change is valid without **New Castle County Council approval**. (1988 Declaration ¶16 · pp. 6–7 (Bk 815/310–311)) Talk to the County early (good practice).
4. **By-Laws:** the documents conflict on who amends. The By-Laws say members, by a majority of a quorum at a meeting whose notice states the purpose. (By-Laws Art. XII §1 · pp. 9–10; Art. IV §3 · pp. 2–3) The Cert. says the Directors. (Cert. of Inc. Sixth · p. 2) The Cert. controls over the By-Laws. (By-Laws Art. XII §2 · p. 10) Until counsel advises, consider having both the Board and the members approve (good practice).
5. A By-Law change can't alter anything the Cert. or the Documents cover, except as they allow. (By-Laws Art. XII §1 · pp. 9–10)
6. **Rules and Regulations** (not an amendment of the documents): the Rules Committee drafts at the Board's request; the Board adopts and publishes. Rules can't conflict with the Declaration. (By-Laws Art. IX §3 · p. 8; Art. V §1(c) · p. 3; Decl. of Restrictions Art. IV §3 · p. 8 (Bk 819/337))
7. Once adopted, file copies with HRMA's records and send them to all members (good practice).

Watch-outs

Developer-era provisions (may no longer apply)

- **Class B voting** (3 votes per developer lot) ended no later than Dec. 31, 1999. (Decl. of Restrictions Art. IV §2 · pp. 7–8 (Bk 819/336–337); Cert. of Inc. Fourth · p. 2; the 1988 Declaration ¶8 · p. 5 (Bk 815/309) allows Class B up to 3 votes per lot but sets no end date)
- **"Class A" wording on assessments.** With Class B ended, this presumably now covers every lot; confirm with counsel. (Cert. of Inc. Seventh · p. 2; Decl. of Restrictions Art. V §1 · p. 8 (Bk 819/337))
- **Developer assessment rules:** exempt developer lots, developer-paid upkeep until Aug. 1, 1990, the first $150.00 assessment and pro-rating for developer sales. (Decl. of Restrictions Art. V §3–§4 · p. 9 (Bk 819/338); Art. V §8 · p. 11 (Bk 819/340))
- **Architectural review by the "Declarant,"** its assignment to the Board and the Ad Hoc Committee. Who holds this power today is the key open question. (Decl. of Restrictions Art. II §1–§3 · pp. 5–7 (Bk 819/334–336))
- **Developer exemptions and rights:** business activities and review exemption (Decl. of Restrictions Art. III §1 · p. 7 (Bk 819/336)); 1-year grading access (Decl. of Restrictions Art. I §16 · p. 5 (Bk 819/334)); solo amendment rights (Decl. of Restrictions Art. VI · pp. 11–12 (Bk 819/340–341)); Record Plan changes and power of attorney (Decl. of Restrictions Art. VII · p. 12 (Bk 819/341)); assigning enforcement to HRMA (Decl. of Restrictions Art. VIII · pp. 12–13 (Bk 819/341–342)).
- **Who "Declarant" means** once the Schlossers convey Lots 6–72 to Granville (from then on, only Granville; these files don't show that deed) (Decl. of Restrictions Art. XI §2 · pp. 13–14 (Bk 819/342–343); 1988 Declaration ¶16 · p. 7 (Bk 815/311)), and **1988 build-out items:** Declarant approval of open-space buildings, the pre-construction stormwater plan, and Certificates of Occupancy as proof of performance. (1988 Declaration ¶3–¶4 · p. 2 (Bk 815/306); ¶15 · p. 6 (Bk 815/310))
- **1989–1990 contact details:** registered office and agent (Cert. of Inc. Second · p. 1), Lien Docket address (Decl. of Restrictions Art. V §7 · p. 10 (Bk 819/339)) and the 1990 officers and Delaware Trust bank account (By-Laws Written Consent · p. 11). Confirm current details.

Conflicts and inconsistencies between documents

1. **Who amends the By-Laws.** Cert.: the Directors (Cert. of Inc. Sixth · p. 2). By-Laws: the members (By-Laws Art. XII §1 · pp. 9–10). The Cert. controls over the By-Laws (By-Laws Art. XII §2 · p. 10).

2. **How long a vacancy appointee serves.** Cert.: until the next annual members' meeting (Cert. of Inc. Seventh · p. 2). By-Laws: the predecessor's unexpired term (By-Laws Art. V "Vacancies" · p. 4).
3. **Who sets the annual assessment.** The Board fixes it (1988 Declaration ¶6(c) · p. 3 (Bk 815/307); By-Laws Art. V §2(c)(i) · p. 4; Cert. of Inc. Seventh · p. 2). But "any change" needs 2/3 of Class A members present (Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337)). The 1988 Declaration also leaves staffing and insurance spending to "members ... or the majority of them" (1988 Declaration ¶6(b) · p. 3 (Bk 815/307)).
4. **When the assessment is set.** Cert.: at the regular Board meeting before the annual meeting (Cert. of Inc. Seventh · p. 2). Under the By-Laws schedule, unless the Board has changed it, that is the December meeting (By-Laws Art. VI §2 · p. 4). By-Laws: as soon as practical after the calendar year begins, before March 1 (By-Laws Art. V §2(c)(i) · p. 4).
5. **When an assessment is late.** 1988: delinquent when not paid when due; if still unpaid 30 days after the due date, interest runs from the date of delinquency (1988 Declaration ¶6(d) · pp. 3–4 (Bk 815/307–308)). Decl. of Restrictions: delinquent if unpaid before April 1, interest from the due date (Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338)). The two land near the same date but are worded differently.
6. **Status certificates.** Decl. of Restrictions: written request from an owner or certifying attorney, $10.00, 5 business days (Decl. of Restrictions Art. V §7 · pp. 10–11 (Bk 819/339–340)). By-Laws: any person, on demand, no fee stated (By-Laws Art. V §2(d) · p. 4). The Documents control over the By-Laws (By-Laws Art. XII §2 · p. 10).
7. **Who approves the budget.** The Treasurer prepares it (By-Laws Art. VIII §7 · p. 8), the Audit Committee "approves" it (By-Laws Art. IX §7 · p. 9), and spending is tied to a budget "adopted by the Board" (By-Laws Art. VIII §6 · p. 7). Safest to do all three (good practice).
8. **Officer list.** The Cert. lets the Board elect a President, a Vice-President, a Secretary, a Treasurer "and such other officers as may be deemed desirable" (Cert. of Inc. Seventh · p. 2), so Assistant Secretaries are allowed under the Cert. The By-Laws also require one or more Assistant Secretaries (By-Laws Art. VIII §1 · pp. 6–7) and mention an "Executive Vice-President" that no article creates (By-Laws Art. IV §2 · p. 2). The 1990 Written Consent named no Assistant Secretary and combined Secretary and Treasurer (By-Laws Written Consent · p. 11). The documents don't say whether one person may hold two offices.
9. **Who "Declarant" is in the 1988 Declaration.** The opening paragraph names the Schlossers and Granville (1988 Declaration Preamble · p. 1 (Bk 815/305)); the definition names only Granville (1988 Declaration ¶14(e) · p. 6 (Bk 815/310)).

10. **Open-space buildings vs. trees.** Buildings are allowed (1988 Declaration ¶3 · p. 2 (Bk 815/306)) but existing trees and plants must stay undisturbed (1988 Declaration ¶5 · p. 2 (Bk 815/306)).
11. **Names that don't match.** The Plan is a "Land Subdivision Plan" in one By-Laws definition and a "Land Development Plan" in the next (By-Laws Art. I · p. 1). The Easement's plan title says "Hunter's Ridge Association" (Easement ¶1 · p. 1) and its notary block says "Hunter's Ridge Maintenance Corporation" (Easement · p. 4 (Bk 2840/311[?])).

Ambiguous wording

- **"Majority of a quorum"** for By-Law amendments: a majority of votes present, or a majority of the minimum quorum (more than 30% of the total vote)? (By-Laws Art. XII §1 · pp. 9–10)
- **Discount deadline "prior to the thirty-first day of March":** read literally, March 31 itself does not qualify. (Decl. of Restrictions Art. V §5 · p. 9 (Bk 819/338))
- **Interest rate:** only "the legal rate" under Delaware law; no percentage. (Decl. of Restrictions Art. V §6 · p. 9 (Bk 819/338))
- **Special assessments:** the 1988 Declaration says assessments will be set "as hereinafter provided," but the only follow-up is that the board fixes "such assessment" annually (1988 Declaration ¶6(c) · p. 3 (Bk 815/307)); it is unclear whether that covers special assessments, and no vote or cap is stated. (1988 Declaration ¶6(b) · p. 3 (Bk 815/307); By-Laws Art. V §2(c)(ii) · p. 4)
- **"Majority of the members"** for removing open-space structures: all members, or those voting? (1988 Declaration ¶6(b) · p. 3 (Bk 815/307))
- **Open-space trees:** the exceptions are grammatically unclear, "existing" isn't defined, and removing dead or hazardous trees isn't addressed. (1988 Declaration ¶5 · p. 2 (Bk 815/306))
- **Detached-garage fence wording** and **who decides "front" and "side" lines.** (Decl. of Restrictions Art. I §9 · pp. 3–4 (Bk 819/332–333); Art. II §1 · p. 6 (Bk 819/335))
- **Votes per open seat:** "in respect of each vacancy" likely means a full vote for each seat, but this isn't certain. (By-Laws Art. VII §1 · p. 5)
- **"Lot"** may literally include the open-space parcels. (1988 Declaration ¶14(b) · p. 6 (Bk 815/310))
- **Director liability** exception refers to "stockholders," but HRMA has no stock. (Cert. of Inc. Eighth · pp. 2–3; Fourth · p. 1)
- **Easement:** the indemnity runs the "wrong way" (¶9), the "1A" label in ¶2 is handwritten (followed by an uncertain handwritten note read as "125[?] to RD[?]", and the parenthesis

is never closed), and the typed description has a direction error, and it is unclear whether sign-building rights reach Parcel #1A (¶3). (Easement ¶2–¶9 · p. 2 (Bk 2840[?]/309))

- **Reserves clause:** "reserves for maintenance to meet the financial needs of the Association not related to maintenance." (Decl. of Restrictions Art. V §3 · p. 9 (Bk 819/338))

Original typos that could matter

- **"23,930 acres"** for Lots 22–72 plus the open space, printed in both Exhibit A surveys. It is probably 23.930; the stated total is 47.71± acres. (1988 Declaration Exh. A · p. 14 (Bk 815/318); Decl. of Restrictions Exh. A · p. 20 (Bk 819/349); Decl. of Restrictions Preamble · p. 1 (Bk 819/330))
- **"paying fields"**, probably "playing fields." (1988 Declaration ¶6(b) · p. 3 (Bk 815/307))
- **A dropped word** in the assessment-change rule: "for this purpose written notice shall set forth the purpose." (Decl. of Restrictions Art. V §3 · p. 8 (Bk 819/337))
- **"or it successors or assigns"** in the 30-day deemed-approval sentence. (Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335))
- **By-Laws missing words:** "may from promulgate" (By-Laws Art. III §2 · p. 2), "Secretary of at" (By-Laws Art. IV §4 · p. 3), "meetings of the a majority" (By-Laws Art. VI §5 · p. 5), "as may votes ... entitled to case" (By-Laws Art. VII §1 · p. 5), "authorized by the Board of except" (By-Laws Art. VIII §3 · p. 7).
- **Blank recording details:** the 1988 Declaration's Plan recording date and Microfilm No. were never filled in. (1988 Declaration Preamble · p. 1 (Bk 815/305); Exh. A · pp. 10, 12 (Bk 815/314, 316))
- **Hard-to-read fraction** after "one-fourth" in the special-meeting petition rule; the words are clear. (By-Laws Art. IV §2 · p. 2)

What the documents don't address

A search of all five transcriptions found **nothing** on these topics:

- **Email or electronic** notice, voting or meetings. Members' meeting notice is in person or by mail; Board special-meeting notice is by mail, in person or by telephone. (By-Laws Art. IV §3 · pp. 2–3; Art. VI §3 · p. 4; Decl. of Restrictions Art. IX · p. 13 (Bk 819/342))
- **Fines** for violations, and **late fees**. Only interest, collection costs and attorney's fees are provided.
- A **notice-and-hearing process** before enforcing a use rule. Only the architectural appeal has one. (Decl. of Restrictions Art. II §2 · p. 6 (Bk 819/335))

- **Renting or leasing limits.** Lots are "private residential purposes only" (Decl. of Restrictions Art. I §1 · p. 2 (Bk 819/331)), and tenants on 1-year-plus leases may use the open space (By-Laws Art. III §2 · p. 2).
- **Flags.**
- **Director term length, maximum board size,** and how the number of directors is set. (Cert. of Inc. Seventh · p. 2 leaves it to the By-Laws; By-Laws Art. V §1 · p. 3 says only "three (3) or more.")
- **Members removing a director.**
- **What happens if a members' meeting misses the 60% quorum.** There is no adjournment or reduced-quorum rule.
- **Indemnifying directors or officers,** or D&O insurance. Only the Cert.'s liability limit exists. (Cert. of Inc. Eighth · pp. 2–3)
- **Conflicts of interest.** The By-Laws expressly allow hiring a member, officer or director. (By-Laws Art. V §1(a) · p. 3)
- **The fiscal year.** It is referred to but never defined. (By-Laws Art. VIII §7 · p. 8)
- **Who clears the entrance-sign sidewalk.** Only that HRMA doesn't have to. (Easement ¶7 · p. 2 (Bk 2840[?]/309))
- **Record retention** other than ballots (90 days). (By-Laws Art. VII §6 · p. 6)
- **How the Cert. of Inc. itself is amended.**

Confirm with counsel

1. Was architectural review (Decl. of Restrictions Art. II §2 · p. 6 (Bk 819/335)) or enforcement power (Decl. of Restrictions Art. VIII · pp. 12–13 (Bk 819/341–342)) ever assigned to HRMA or its Board? Look for a recorded instrument and Board records.
2. Who may amend the By-Laws, and how to count "majority of a quorum."
3. The term of a director appointed to fill a vacancy.
4. How the Board's annual fixing fits with the 2/3 member vote on "any change," and whether special assessments need a vote.
5. The current Delaware "legal rate" of interest, and the steps to take before suing or foreclosing.
6. Whether Article I now applies to Lots 1–5.
7. HRMA's current registered office and agent, its principal office, and where the Lien Docket is kept.
8. The Easement's recording reference, whether the second sign location has its own easement, and the reversed indemnity clause.

9. Removing dead or dangerous trees from the Private Open Space.
10. Before enforcing the sign, antenna, satellite-dish, solar-panel or clothesline rules, ask whether any later law limits them. This guide does not cover outside law.
11. Before using email notice or electronic voting, ask whether it's allowed.

Where to find it

Reading a citation. Example: `Decl. of Restrictions Art. II §1 · p. 6 (Bk 819/335)`

- **Decl. of Restrictions** is the document's short name (see the table below).
- **Art. II §1** is the article and section, exactly as that document numbers them. The 1988 Declaration and the Easement use numbered paragraphs (¶). The Cert. of Inc. uses ordinal articles (**First** to **Eighth**). The By-Laws "Vacancies" paragraph has no number in the original.
- **p. 6** is the page of the scanned original (page 6 of 20). For the Declarations' main text this matches the printed page number.
- **(Bk 819/335)** is the New Castle County Recorder of Deeds book and page stamped on that page. The Cert. of Inc. and By-Laws have none. On the Easement, only some stamps are legible: page 2 reads "309" with the book number uncertain, so it is shown as "Bk 2840[?]/309." Confirm Easement references with the Recorder of Deeds before citing them officially.

Short name	Document	File name
Cert. of Inc.	Certificate of Incorporation, June 14, 1989	Certificate_of_incorporation_14Jun1989
1988 Declaration	Declaration, Dec. 13, 1988 (Bk 815)	Declaration_13Dec1988
Decl. of Restrictions	Declaration of Restrictions, Jan. 19, 1989 (Bk 819)	Declaration_of_restrictions_19Jan1989
By-Laws	By-Laws and Written Consent of Directors, Apr. 9, 1990	by-laws (original: by-laws-original)
Easement	Maintenance Easement Agreement, Feb. 18, 2000	Easement_agreement_18Feb2000

In each folder the files use the name above: the original scan is `ORIGINAL/<name>.pdf`; the transcriptions are `PDF/<name>_transcribed.pdf`, `DOCX/<name>_transcribed.docx` and `MD/<name>.md`.

Folders. This guide is in `BOARD_GUIDE/`. The other folders sit next to it in the same "Gov Docs" folder:

- `ORIGINAL/`: the scanned originals. **The recorded originals are the authoritative text.**

- `PDF/`: transcriptions for reading and printing.
- `DOCX/`: transcriptions in Word.
- `MD/`: the master transcriptions. Hidden page markers (for example "Page 5 of 20 | BOOK 819 PAGE 334") show where each original page begins; they are the source of this guide's page and book citations.
- `README.md` (in "Gov Docs"): how the transcriptions were made and how to read them.

Transcription marks. `[?]` is an uncertain reading; `[illegible]` is unreadable in the scan; `{…}` is text restored from the matching survey in the other Declaration. Each transcription ends with **Transcription Notes**, which describe the scans and are not part of the law. The transcriptions are verbatim, so original typos are kept.

Not in this folder: the recorded subdivision Plan (Microfilm No. 9600), any recorded amendments, any assignment of architectural or enforcement powers to HRMA, and the Board's current Rules and Regulations. Get these from the New Castle County Recorder of Deeds and HRMA's own records, and keep copies here (good practice).